



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2022-24605 / PODS Case No. C-031985 regarding Police Officer Dustin Olivos

Date: December 15, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Olivos wrongfully used force, in that he pushed two individuals. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Olivos will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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December 8, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Dustin Olivos (Tax Reg #950978, DADS #2022-24605)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on December 11, 2024. Assistant Deputy Commissioner Paul M. Gamble Sr. endorsed the negotiated settlement on May 6, 2025.

This incident happened during a protest at the intersection of Malcolm X Boulevard and Hancock Street in Brooklyn on January 31, 2020. Officer Olivos was one of the officers policing the incident. During the incident, officers are instructing the protestors to back up onto the sidewalk. BWC and civilian-filmed footage captured Officer Olivos pushing two civilians, one named [REDACTED] and one who was unidentified.

Both individuals stumbled as a result of being pushed by Officer Olivos. At the time of the pushes, both civilians were already moving in the direction that the officers had been instructing the civilians to move. As a result, both uses of force were unjustified and unreasonable.

For the charges of non-deadly force with no injury, the disciplinary matrix lists a mitigated penalty of the forfeiture of five (5) vacation days, a presumptive penalty of the forfeiture of ten (10) vacation days, and an aggravated penalty of Termination. The negotiated settlement deviates from NYPD disciplinary guidelines as to non-deadly force with no injury for the following reasons:

The basis for this recommendation is Officer Olivos's fourteen years of service and the fact that he received 7 out of 10, above standards, in his most recent evaluation.

Respectfully submitted,

Brian Arthur
Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board